

STATE OF NEW YORK

4707--A

2025-2026 Regular Sessions

IN SENATE

February 11, 2025

Introduced by Sens. STAVISKY, BYNOE, GALLIVAN, HARCKHAM, HINCHEY, JACKSON, SCARCELLA-SPANTON -- read twice and ordered printed, and when printed to be committed to the Committee on Higher Education -- recommended to the Committee on Higher Education in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, the criminal procedure law and the retirement and social security law, in relation to the geographic area of employment of state university police officers, centralization of the state university police, and hiring of state university police officers; and to repeal paragraph (d) of subdivision 34-a of section 1.20 of the criminal procedure law relating thereto

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Legislative intent. The legislature hereby finds and
2 declares that maintaining a safe environment for individuals studying on
3 the campuses of the state university of New York is of critical impor-
4 tance, and that a well trained and well organized campus police force is
5 vital to ensure that safety. The legislature also finds that the current
6 structure of the campus police force at the state university is ineffi-
7 cient, subject to an excessive and unpredictable management salary
8 structure, and does not ensure an equal level of security and protection
9 at the many campuses across the state. The intent of this act is to
10 create a system of police organization at the state university that
11 borrows the lessons learned by other successful police forces, such as
12 the New York state police, and creates a unified and clear rank and file
13 and command structure that empowers individuals with law enforcement
14 experience to make decisions based on current law enforcement best prac-
15 tices and in the best interest of public safety. The legislature
16 acknowledges the individual character and physical layout of each campus

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 and finds that it is possible for a central police command to manage
2 diverse campus needs.

3 § 2. Paragraph 1 of subdivision 2 of section 355 of the education
4 law, as amended by chapter 424 of the laws of 1998, is amended to read
5 as follows:

6 l. To appoint a commissioner of state university police who shall be a
7 sworn member of the state university police [~~officers who shall have the~~
8 ~~powers of police officers~~] and to remove such commissioner of state
9 university police [~~officers~~] at pleasure; provided, however, that any
10 person appointed [~~a~~] as commissioner of state university police [~~offi-~~
11 ~~cer~~] must have satisfactorily completed or complete within one year of
12 the date of [~~his~~] such person's appointment a course of law enforcement
13 training approved by the municipal police training council [~~in consulta-~~
14 ~~tion with the university. It shall be the duty of such police officers~~
15 ~~to preserve law and order on the campuses and other property of the~~
16 ~~university, including any portion of a public highway which crosses or~~
17 ~~abuts such property~~]. The commissioner of state university police shall
18 have the authority to appoint university police officers. The commis-
19 sioner of state university police shall have supervisory and administra-
20 tive authority over all university police officers in the state of New
21 York. Notwithstanding any other provision of law, there shall be no
22 further appointments in the state university police to chief of police,
23 assistant chief of police, deputy chief of police, inspector, or any
24 other unclassified service or professional service position.

25 [~~Subject to the approval of the chancellor, the president of each~~
26 ~~state operated campus of the~~] State university police may only operate
27 off-campus pursuant to a written agreement between the commissioner of
28 the state university [~~shall~~] police [~~enter into a written agreement~~
29 ~~with~~] and adjoining law enforcement agencies establishing protocols for
30 the exercise of authority by such university police [~~officer~~] officers
31 off-campus, including but not limited to mutual aid [~~and~~], assistance,
32 and off-campus events. Such written agreement may be amended as both
33 parties agree. Such written protocols shall not be deemed to supersede
34 the authority of other police officers. The provisions of this para-
35 graph shall not apply to any of the state institutions and property
36 referred to in section five thousand seven hundred nine of this chapter.

37 § 3. Paragraph (s) of subdivision 34 of section 1.20 of the criminal
38 procedure law, as amended by section 13 of part BBB of chapter 59 of the
39 laws of 2021, is amended to read as follows:

40 (s) A [~~university police officer appointed by the state university~~
41 ~~pursuant to paragraph 1 of subdivision two of section three hundred~~
42 ~~fifty five of the education law where such department or force is certi-~~
43 ~~fied in accordance with paragraph (d) of subdivision one of section~~
44 ~~eight hundred forty six-h of the executive law~~] sworn member of the
45 state university police;

46 § 4. Paragraph (a) of subdivision 34-a of section 1.20 of the criminal
47 procedure law, as amended by chapter 428 of the laws of 1999, is amended
48 to read as follows:

49 (a) [~~Except as provided in paragraph (d) of this subdivision,~~] New
50 York state constitutes the "geographical area of employment" of any
51 police officer employed as such by an agency of the state or by an
52 authority which functions throughout the state, or a police officer
53 designated by the superintendent of state police pursuant to section two
54 hundred twenty-three of the executive law;

1 § 5. Paragraph (a) of subdivision 34-a of section 1.20 of the criminal
2 procedure law, as amended by chapter 424 of the laws of 1998, is amended
3 to read as follows:

4 (a) [~~Except as provided in paragraph (d),~~] New York state constitutes
5 the "geographical area of employment" of any police officer employed as
6 such by an agency of the state or by an authority which functions
7 throughout the state;

8 § 6. Paragraph (d) of subdivision 34-a of section 1.20 of the criminal
9 procedure law is REPEALED.

10 § 7. Subparagraph 6 of paragraph (a) of subdivision 2 of section 211
11 of the retirement and social security law, as amended by chapter 753 of
12 the laws of 1976, is amended to read as follows:

13 (6) the chancellor of state university if such person is to be
14 employed in the unclassified service of the state university of New
15 York, or in the professional service at the state colleges of agricul-
16 ture, home economics, veterinary medicine or industrial and labor
17 relations, the state agricultural experiment station at Geneva or any
18 other institution or agency under the management and control of Cornell
19 university as representative of the board of trustees of state universi-
20 ty of New York, or at the state college of ceramics under the management
21 and control of Alfred university as representative of the board of trus-
22 tees of state university of New York or in the unclassified service of a
23 community college other than those in the city of New York, unless such
24 person is to be employed as the commissioner of state university police
25 or as a university police officer; or

26 § 8. This act shall take effect on the first of January next succeed-
27 ing the date on which it shall have become a law; provided, however,
28 that the amendments to paragraph (a) of subdivision 34-a of section 1.20
29 of the criminal procedure law made by section four of this act shall be
30 subject to the expiration and reversion of such paragraph pursuant to
31 section 3 of chapter 428 of the laws of 1999, as amended, when upon such
32 date the provisions of section five of this act shall take effect.